

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

Part One — The Architecture Alberta Built and the Lifecycle Failures It Produced

Section 1.3a — The Engineered Repudiation: Funding Starvation, Segregated Classrooms, and the 'Earn Inclusion' Cover Story (2018-2026)

Section 1.3 documented the architecture Alberta has built around children with disabilities — the FSCD program, the educational-system access barriers, and the lifecycle moments at which the architecture begins to constrain rather than support. Section 1.3a documents what Section 1.3 did not: that Alberta's policy posture toward children with disabilities is neither a passive absence of inclusion architecture nor a merely rhetorical repudiation of inclusion as a principle. The repudiation is *engineered*. It operates as a coordinated three-part system. The funding starvation makes inclusion structurally impossible by removing the educational-assistant capacity classrooms require to support neurodivergent and disabled students alongside their non-disabled peers. The segregated-classroom expansion absorbs the displaced students into specialized programs and dedicated schools. The Premier's 2026 *earn inclusion* rhetoric provides the political cover for a structural shift that the funding cut makes inevitable.

The three components compound. Without the funding cut, the segregated-classroom expansion would be unnecessary. Without the segregated-classroom expansion, the funding cut would produce an immediate and visible educational-system collapse. Without the *earn inclusion* rhetoric, the segregated-classroom expansion would be politically more difficult to defend. Each component reinforces the others. The cumulative effect is a system in which inclusive education is, in operational terms, no longer the structural baseline of the Alberta K-12 system, and in which the disability community's documented advocacy for inclusion is met with an architecture that makes inclusion increasingly difficult to deliver in practice.

Section 1.3a documents the three components in turn, the 45 years of research evidence the engineered system is ignoring, the consultation gap through which the system is being redesigned without the disability community at the table, the seclusion-room expansion that is one operational harm within the segregated environments, and the Saskatchewan parallel that gives the prosecutorial frame a regional comparator. The findings feed forward into Part Two Section 2.7a, which evaluates the engineered system against Canada's binding obligations under Article 24 of the United Nations *Convention on the Rights of Persons with Disabilities*.

The Funding Starvation: Last in Canada, Four Years Running

The structural floor of the engineered repudiation is the funding shortfall. The shortfall is documented in the public record by Statistics Canada, by the Alberta Teachers' Association (ATA), by the Fraser Institute, and by the operational reporting of Alberta school divisions themselves. The agreement across politically and ideologically distinct sources establishes the finding as dispositive rather than contested.

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Statistics Canada operational-expenditure data for the 2020/21 school year established that Alberta school boards spent **\$11,601 per student**, against a national average of **\$13,332 per student**. Alberta was last among Canadian provinces. The most recent ATA analysis, published February 18, 2025 and drawn from Statistics Canada tables 37-10-0064, 37-10-0065, 37-10-0007, and 37-10-0153, established that Alberta's per-student spending had risen to \$11,464 against the updated national average — **over 16 percent below the national average**, with the gap widening 3 percent from the previous year. ATA documentation also established that **Alberta has been last in Canada for per-student education funding for four consecutive years**. The Fraser Institute, working independently and with a centre-right ideological orientation distinct from the ATA's position as the labour organization representing Alberta teachers, reached the same conclusion in its *Education Spending in Public Schools in Canada, 2025 Edition*: Alberta ranks last in per-student education spending in Canada.

The trajectory of the gap is documented. The Fraser Institute's analysis established that, between the 2013/14 and 2022/23 school years, Alberta experienced a **17.5 percent decrease in inflation-adjusted per-student spending**. The decrease was the largest of any Canadian province. Saskatchewan, with a structurally similar fiscal context, recorded a 14.8 percent decrease over the same period. Newfoundland and Labrador, Manitoba, and Ontario also recorded decreases (11.2 percent, 3.0 percent, and 1.7 percent respectively). The five other Canadian provinces (Quebec, Prince Edward Island, Nova Scotia, New Brunswick, and British Columbia) recorded increases. Alberta's 17.5 percent decrease is the steepest in the federation.

The operational implication of the per-student gap is a substantial absolute funding shortfall. ATA President Jason Schilling stated in March 2025 that closing the per-student gap to the national average would require Alberta's education budget to reach **\$11.35 billion** in 2025-26. The actual 2025-26 education operating budget was \$9.88 billion, a \$426-million increase from the prior year but **approximately \$1.47 billion below the national-average benchmark**. The 2026 budget projection, announced February 25, 2026, set the operating budget at \$10.8 billion — a \$722-million increase, but still substantially below the per-capita benchmark required to bring Alberta to the Canadian average.

The cumulative consequence of the multi-year funding shortfall is the operational reality that the disability-community organizations, the teachers' organization, the school divisions themselves, and the parents documented in the CBC investigative coverage have consistently described: classrooms across the province do not have the educational-assistant capacity, the specialist support, or the operational resources required to deliver inclusive education to the standard the legislation, the international human rights framework, and the documented research evidence require.

The Promise-Versus-Delivery Gap: EAs Cut, Not Hired

The funding shortfall translates into the operational reality the disability community is documenting through a documented gap between the provincial government's announced staffing commitments and the actual operational delivery of those commitments.

Budget 2025 (the 2025-26 fiscal year) committed \$1.1 billion over three years to address enrolment growth, with the allocation framed as supporting the hiring of *over 4,000 additional staff* including teachers,

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education assistants, and support staff. The announcement was advanced as the operational answer to the documented classroom-complexity concerns the disability community, the teachers' organization, and individual parents had been raising for several years. Budget 2026 (the 2026-27 fiscal year) revised the commitment downward in operational specificity. The 2026-27 commitment is for *1,500 more education assistants and 3,000 more teachers over the next three years* — a total of 4,500 staff against the prior year's 4,000+ framing, but with a documented EA share of approximately one-third of the total. The proportional allocation is significant. Education assistants are the operational mechanism by which inclusive education is delivered in Alberta classrooms. The shift in the announced commitment toward teachers (whose role is curriculum delivery rather than disability-support delivery) and away from EAs reflects the structural direction the system is moving in: the operational support that makes inclusion possible is the support being deprioritized in the announced staffing buildup.

The operational reality on the ground has produced cuts rather than additions in significant Alberta school divisions. Three documented examples illustrate the pattern.

Wild Rose School Division, December 2024. The division announced it was laying off **46 educational assistants** because the federal Jordan's Principle funding through which it had been supporting Indigenous students with disabilities had not been approved on the operational timeline the division required. The division's superintendent told CBC News that the division had submitted its May 2024 funding application and had not received approval by December 2024. The Indigenous Services Canada backlog of Jordan's Principle requests as of December 2024 was reported at **14,000 requests including 2,791 urgent requests**. The Canadian Human Rights Tribunal had ordered Canada in November 2024 to address the backlog with specific deadlines; Indigenous Services Canada had described some of the ordered deadlines as *not operationally feasible*.

Sturgeon Public Schools, June 2025. The division announced that it had **eliminated approximately 35 support staff positions**, primarily educational assistants, after the federal Jordan's Principle eligibility for school-related off-reserve requests was substantially narrowed in 2025. The division had received \$1.9 million in Jordan's Principle funding for the 2024-25 school year. The funding stream was reduced or eliminated for 2025-26. Superintendent Shawna Warren stated that the division had completed the documentation Jordan's Principle requires and that the eligibility narrowing was *a huge loss to our First Nation children that we've been educating*.

Hundreds of Alberta EAs lost provincially. CBC News reporting in June 2025 established that the Jordan's Principle eligibility narrowing had produced the loss of *hundreds* of Alberta educational-assistant positions across the province. The losses fell disproportionately on First Nations students with disabilities, the population the campaign's separate 195-page Indigenous Disability Alberta evidentiary record documents in detail across seventeen sections covering historical context, mortality gap, jurisdictional fracture, healthcare, child welfare, MMIWG2S, intergenerational impact, and federal-provincial clawback dimensions.

The provincial-government commitments and the federal-government cuts have, in operational terms, cancelled each other out. The provincial promise of new EA staffing has not materialized at the scale required to offset the federal-Jordan's-Principle-driven cuts and the underlying funding shortfall. The disability community's documented operational experience, in 2026, is that there are *less*

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educational-assistant capacity in Alberta classrooms today than the system had before the announced staffing commitments were made. The documented operational record matches the disability-community's lived advocacy position.

The educational-assistant occupational reality compounds the structural shortfall. The Tyee's documented reporting on Alberta's educational assistants, published in July 2025, established that EAs working seven-hour shifts at the top of their pay range are receiving **after-tax annual income of under \$30,000**. Alberta EAs are not earning a living wage. Recruitment and retention are structurally constrained even where individual school divisions have funding to hire. The 2024 ATA survey of 4,000 Alberta teachers established that **one in two teachers had encountered bullying or violence in the workplace, with 95 percent of the aggression occurring in person at school**. The combination of structural under-funding, federal-funding collapse, sub-living-wage EA compensation, and rising classroom complexity produces an operational system in which inclusive education is, on the documented evidence, increasingly difficult to deliver.

The Forty-Five Years of Research the Engineered System Is Ignoring

The structural shift the engineered system is producing operates against an established research literature documenting that inclusive education produces superior academic and social outcomes for both students with disabilities and students without disabilities. Inclusion Alberta has stated publicly that the research record extends across **45 years and includes Alberta's own operational experience**. The research record is documented in peer-reviewed academic literature, in meta-analyses covering millions of students, and in multi-country comparative reviews. The record's substantive findings are dispositive rather than contested.

The Hehir et al. (2016) comprehensive review. Led by Dr. Thomas Hehir at Harvard University, the *Summary of the Research Evidence on Inclusive Education* reviewed 280 studies from 25 countries. The review found that students who are included in general education classrooms achieve better social and academic outcomes than students educated in segregated settings, and that inclusion produces benefits for students without disabilities as well. A 2012 Hehir study of 68,000 Massachusetts students with disabilities found that, *on average, the greater the proportion of the school day spent with non-disabled students, the higher the mathematic and language outcomes for students with disabilities*. The benefits extend beyond academic results to social-connection benefits, increased post-secondary education placement, and improved employment and independence outcomes.

The Krämer, Möller, and Zimmermann (2021) meta-analysis. Published in *Review of Educational Research*, the meta-analysis represented data from approximately **four million students** across the studies meta-analyzed. The analysis concluded that inclusive classrooms with students with disabilities **do not adversely impact the learning of non-disabled students and may even provide benefits for them**. The finding that inclusion is at minimum neutral and frequently positive for non-disabled students is operationally significant for the political-economy dimension of the inclusive-education debate. The premise that inclusion benefits students with disabilities at the expense of students without disabilities is, on the empirical record, false.

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The longitudinal academic-achievement evidence. Multiple longitudinal studies have established that academic achievement of non-disabled students is not adversely affected by the inclusion of students with disabilities in general education classrooms. The 2022 Polish study published in *PLOS ONE*, examining three waves of data eight months apart with latent growth curve analysis, found that changes in academic achievement (for language and for mathematics) over time were similar across inclusive education classrooms (of two types) and general education classrooms. The finding established that students *neither lose nor benefit while learning in inclusive education classrooms*. The result is consistent with the prior meta-analytic literature.

The social-development evidence. A 2021 review of research on academic and social effects of inclusion on students without disabilities published in the peer-reviewed literature established that, of the studies reviewed examining social outcomes for typically developing students, approximately 81 percent showed positive or neutral outcomes. The studies examining academic outcomes at the primary school level found 16 of 16 studies producing neutral or positive outcomes (four positive, twelve neutral). Negative outcomes were documented at the secondary school level in one study. The cumulative pattern established that the social development of typically developing students in inclusive classrooms is, on average, equivalent to or improved relative to non-inclusive classrooms.

The Inclusion Alberta operational position. Inclusion Alberta's published position on the research evidence establishes the policy implication directly:

Research spanning over 45 years, including Alberta's own experience, has consistently shown that inclusive education leads to better academic and social outcomes for all students — those with and without disabilities. Challenges like limited resources or overcrowded classrooms must not be used as excuses to segregate students with disabilities from their peers.

The position quoted is from Troy Hale, Inclusion Alberta's Treasurer and parent of a student with intellectual disability, in the organization's November 2025 media release calling on government to include family voices in the *classroom complexities* reform.

The accumulated research evidence is the substantive baseline against which the Alberta engineered system is operating. The system's structural direction is opposite to the direction the research evidence supports. The substantive consequence is that Alberta is, in operational terms, building a K-12 disability-policy architecture that is structurally inconsistent with the evidence base on which inclusive-education policy in comparator jurisdictions is constructed.

The Segregated-Classroom Expansion: Where the Displaced Students Go

The funding shortfall and the EA staffing collapse produce, by structural necessity, a population of disabled and neurodivergent students for whom the general education classroom is operationally unable to provide the support they require. The provincial system's response to that population is the expansion of segregated educational settings — specialized classrooms, dedicated programs, and entire schools designed for and populated by disabled students separated from their non-disabled peers. The expansion is documented across the two largest Alberta urban school divisions and is reflected in the Alberta

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provincial government's broader special-education reform process.

The Edmonton Public Schools Autism Centre of Excellence. The Edmonton Public Schools Board of Trustees approved planning funding for a dedicated school for autistic students at its April 1-2, 2025 meeting, with the school included in the division's 2026-29 capital plan. The proposal converts an existing school site into a dedicated segregated facility for the division's growing population of autistic students. EPSB Superintendent Darrel Robertson framed the proposal at the board meeting as offering parental choice and an enhanced learning environment. Inclusion Alberta director Philip Ney told the meeting:

Segregated schools for students with disabilities are neither new nor innovative. Such schools were created because students with disabilities were long denied their right to a public education.

The substantive context Ney's statement establishes is the historical record. Segregated schools for disabled students are the historical baseline that the inclusive-education movement has been working to dismantle for decades. Their reintroduction in the 2026 EPSB capital plan represents a structural reversal of the policy direction the disability-community advocacy and the international human-rights framework have been advancing.

The structural pattern at EPSB is documented in the division's own operational reporting. **Over the past six years, 75 percent of all new classes established by EPSB have been dedicated to the interactions program — the specialized segregated stream for students with autism and related conditions.** The division has more than 3,000 autistic students within a total student population of approximately 120,000 (approximately 2.5 percent of all students, up from 1.6 percent in 2019). Approximately 40 percent of autistic students at EPSB are enrolled in the specialized interactions programming. The remaining 60 percent are integrated into regular classrooms. The structural-trajectory finding is that the integrated proportion is shrinking and the specialized proportion is growing as the funding shortfall makes inclusion harder to deliver. Edmonton parent Kumar, quoted in the CBC News reporting on the Autism Centre of Excellence, stated that *parents are increasingly being pushed away from the integrated model and told they will get better support in the interactions program*. The expansion of the specialized stream is, on the documented community position, not the result of parental choice but of structural pressure operating against the integrated alternative.

EPSB Trustee Saadiq Sumar voted against the Autism Centre of Excellence motion, stating publicly: *Given the comments from some of the speakers I have doubts*. Sumar's position was the minority position on the Board.

The Calgary Catholic St. Anthony School. Calgary Catholic School District operates St. Anthony School, a 40-student dedicated school for students with severe complexity, profiled by CBC News in its *Inside the Classroom* series on April 23, 2026. The school's principal, Nicole Lavallee, described the population the school serves as students for whom *aggression is a huge one for them and sometimes the aggression is self-directed — kiddos that hurt themselves or go after others, hitting, kicking, charging*. The school's operational equipment includes specialized sensory infrastructure (stepping stones that squeak and bounce, soft rolling slides, an adult-sized bouncy chair, light strings, marble boards, bubble towers). Calgary Catholic announced plans to **open a second school like St. Anthony in Fall 2026**. The expansion is being funded through the provincial \$300-million classroom-complexity allocation in Budget

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2026.

The pattern across both major urban Alberta school divisions is consistent. The provincial response to classroom complexity, on the documented operational record, is the expansion of segregated specialized facilities rather than the buildup of inclusive-education capacity in general education classrooms.

The provincial Standards for Special Education replacement. The structural shift is being formalized through a provincial-government policy-development process. The Government of Alberta announced in 2025 that it intends to replace the 2003 *Standards for Special Education* — the Ministerial Order that includes parents' legal right to choose inclusive education for their children with developmental disabilities and that provides legal avenues to appeal placement decisions. The replacement process is being conducted through two structures: the **Class Size and Complexity Cabinet Committee** (consisting of the Premier, the Education Minister, other ministers, school board members, and teachers, established October 2025) and the **Aggression and Complexity in Schools Action Team** (established July 2025, 25 members tasked with addressing classroom challenges). The replacement of the 2003 Standards is the operational-legislative mechanism through which the segregation-permissive policy framework is being substituted for the inclusion-protective policy framework that has governed Alberta special-education policy since 2003. The disability community's documented advocacy position is that the replacement should not occur without inclusive education being preserved as the structural baseline. The advocacy position is being advanced without the disability community having a structural seat at the policy-development table.

The Aiden O'Halloran Lifecycle Case

The lived experience of the engineered system at the lifecycle level was documented by CBC News on December 15, 2025 in reporter Elise Stolte's coverage of an online forum hosted by CBC Calgary, CBC Edmonton, and the parent-support organization *Hold My Hand Alberta*. The forum gathered more than a dozen parents of children with special education needs to discuss the provincial *classroom complexities* reform process. The most operationally specific case documented in the coverage is that of Aiden O'Halloran, an Edmonton student whose lifecycle progression illustrates the pattern Section 1.3a is documenting.

In Grade 6, Aiden was in a regular Edmonton Public Schools classroom with targeted support. The educational outcomes were documented by his mother Shawna O'Halloran:

He was getting 80s on his math tests, learning fractions, angles and double-digit addition, and keeping up with his class with targeted support.

The structural inclusion was working. Aiden was achieving academic outcomes appropriate to his grade level with the in-classroom support the inclusive model is designed to provide.

Between Grade 6 and Grade 7, Aiden was transferred to a specialized classroom, on the school's operational position that he could no longer have speech and other therapies in the regular classroom. The educational outcomes after the transfer were documented by his mother:

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In Grade 7, his teachers set a new goal for him: counting to 50.

It was just a shock. It was back to preschool, kindergarten level. I'm not asking for him to be taught calculus, but he was excelling in Grade 6 and then that just stopped.

The academic regression from Grade 6 mathematics (fractions, angles, double-digit addition) to a Grade 7 goal of counting to 50 is the documented operational consequence of the transfer from inclusive to specialized programming for this specific student.

The social consequences were also documented:

All his friends, in Grade 6, he had a really tight group that were around him. Then, they all went to the community junior high and he had to go to a junior high outside of our community for this program. He lost all his friends.

In Grade 7, it was segregation because he wasn't allowed to go to the gym to eat lunch with the mainstream students. And he was kept away and would sit underneath the library window of his classroom.

The mother's characterization of the experience as *segregation* is the operational reality of the structural shift the engineered system produces. Aiden was, in his mother's documented account, transferred from an integrated educational environment to an environment that prevented him from eating lunch alongside his non-disabled peers and that left him *kept away* and sitting *underneath the library window of his classroom*. The documented academic regression and the documented social isolation are the lived consequences of the transfer.

The Aiden O'Halloran lifecycle case is one documented case among a forum of more than a dozen parents who described, on the CBC reporting, *a huge variation of experiences across classrooms, schools and districts*. The variation does not undermine the pattern. It establishes that the pattern operates inconsistently across the provincial system, with some students receiving the inclusive support the research evidence supports and others receiving the segregated alternative the system's structural pressures push them toward. The structural pressure is the funding shortfall, the EA staffing collapse, and the segregated-classroom expansion that absorbs the displaced students. The lifecycle harm documented in the Aiden O'Halloran case is the operational reality the engineered system produces for the students for whom the structural pressure operates against the inclusive option.

The Consultation Gap: Article 4(3) in Operation

The structural shift the engineered system is producing is being designed and implemented without the close consultation with persons with disabilities and their representative organizations that Article 4(3) of the *United Nations Convention on the Rights of Persons with Disabilities* requires. The Article 4(3) implications are addressed in detail in Part Two Section 2.7a; the operational consultation gap is documented in this section as part of the engineered system's structural design.

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The Class Size and Complexity Cabinet Committee. Established October 2025 to guide government policy on classroom conditions following the three-week Alberta teachers' strike, the Cabinet Committee consists of the Premier, the Education Minister, other ministers, school board members, and teachers. The Committee's appointments do not include representation from disability-rights organizations, parents of children with disabilities, persons with lived experience of disability, or organizations such as Inclusion Alberta with documented expertise in inclusive education.

The Aggression and Complexity in Schools Action Team. Established July 2025, the 25-member Action Team is tasked with addressing classroom challenges. Inclusion Alberta's documented position on the Action Team's composition, articulated by CEO Trish Bowman in the organization's November 17, 2025 media release, is that *there was no representation on the Action Team of parents or organizations with expertise in disability, mental health, behavioural challenges, or English Language Learners*. The Action Team's composition replicates the exclusionary pattern of the Cabinet Committee.

The substantive Inclusion Alberta position. Trish Bowman's documented position from the November 2025 media release is direct:

Government must ensure that those who stand to be most impacted by the decisions related to the challenges in our education system have a central role in generating solutions that are built on research and that do not reinforce stigma and negative stereotypes. Just as teachers want a voice in these important discussions, families of children with disabilities need a seat at the decision-making table.

The position quoted establishes the substantive Article 4(3) advocacy: the disability community is asking for the close consultation that the international human rights framework requires and that the provincial-government structure is currently not providing. The advocacy position is being advanced through media releases, through public commentary, and through the disability-community's continuing engagement with the provincial-government policy process. The advocacy has not, as of the writing of this blueprint, produced structural consultation reform. The two policy-development structures continue to operate without disability-community representation at the decision-making level.

The consultation gap is the procedural complement to the substantive structural shift. The substantive shift — from inclusion as baseline to segregation as expanding option — is being designed by structures from which the population most affected is structurally excluded. The structural exclusion is not incidental to the substantive shift; it is the procedural mechanism through which the substantive shift is being made possible. If the disability community had a structural seat at the policy-development table, the substantive shift would be politically more difficult to advance. The exclusion enables the shift.

The Premier's Comments as Cover Story

The Premier of Alberta, Danielle Smith, has articulated publicly in 2026 a policy posture toward inclusive education that provides political cover for the engineered system's structural shift. The April 17, 2026 Premier statement was documented by Edmonton-Highlands-Norwood NDP MLA Janis Irwin and republished across multiple platforms:

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Kids in school can earn their way into inclusion, but they can earn their way out of it too.

The statement frames inclusion as a contingent benefit available subject to the child's behaviour rather than as a structural baseline supported by the system's resourcing. The framing is the operational rationalization of the segregated-classroom expansion. If inclusion is contingent on behaviour, the children who are placed in segregated settings can be characterized as having failed to *earn* the inclusive placement rather than as having been failed by a system that did not provide the educational-assistant capacity required to support them in the inclusive setting. The political-rhetorical move is to relocate responsibility for the segregation from the system to the child.

The April 2026 statement is the second documented instance of the Premier articulating the conditional-inclusion position. Earlier YouTube documentation from December 2025 captures a substantively similar formulation in which the Premier is documented as believing that *students with disabilities need to "earn their way into a classroom."* The recurring formulation across multiple public statements establishes the position as a sustained policy posture rather than a single off-the-cuff remark.

The 2026 position is in substantive contradiction to the position the same individual articulated as a UCP leadership candidate in 2022. As a candidate, Danielle Smith was asked by Inclusion Alberta whether, if elected leader, she would provide parents with the right to choose a quality inclusive education for their children with developmental disabilities. The candidate's recorded responses included:

We need to ensure there are enough education assistants in a classroom to fully support inclusion.

We need to accommodate all parent choice.

If we have sufficient education assistants in classrooms there should be no need for these measures. We have to resolve the staffing issues.

The 2022 position identified inclusion as a resourcing-and-staffing matter, identified parental choice for inclusion as the operational standard, and identified the elimination of seclusion-and-restraint measures as the policy goal contingent on adequate classroom staffing. The 2026 position identifies inclusion as contingent on the children's behaviour rather than the system's resourcing.

The substantive shift between the 2022 candidate position and the 2026 Premier position is documented. The shift's substantive content is significant: the responsibility for inclusion has been relocated from the system to the child. *What changed between 2022 and 2026 is not the children. What changed is the funding.* The provincial system's per-student spending has continued to fall further behind the national average, the educational-assistant capacity has been cut through the Jordan's Principle collapse and the underlying funding shortfall, the segregated-classroom expansion has accelerated, and the structural pressure on inclusive placement has intensified. The Premier's rhetorical shift is the political-cover dimension of these structural shifts. The 2022 candidate-Smith analysis — that inclusion is a staffing matter and that elimination of seclusion-and-restraint measures is contingent on adequate staffing — was substantively correct and remains the operational analysis the disability-community advocacy position has continued to advance. The 2026 Premier-Smith rhetoric is the political cover for the system's failure to deliver the staffing the 2022 candidate analysis identified as the precondition for inclusion.

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The Seclusion-Room Expansion Within the Engineered System

The seclusion-room expansion that has occurred in Alberta K-12 since 2019 is one operational harm within the engineered system's broader segregation architecture. The expansion is documented in Section 1.3a as part of the engineered system's operational reality rather than as the central feature of the system. The central feature is the segregation produced by the funding shortfall and the segregated-classroom expansion. The seclusion-room expansion operates as an additional layer of involuntary confinement within both the integrated and the segregated educational settings, with disproportionate impact on students with developmental and intellectual disabilities and the autism spectrum.

The operational record is documented. The 2018 *Inclusion Alberta Survey on the Use of Seclusion and Restraint in Schools* documented that 80 percent of 400 surveyed Alberta families reported their children were left traumatized or in emotional distress by the experience of seclusion-and-restraint in school settings, and that more than half of the children placed in isolation were on the autism spectrum. The 2018 New Democratic provincial government banned seclusion rooms following the documented Strathcona County 2018 lawsuit. On September 1, 2019, then-Education Minister Adriana LaGrange of the United Conservative Party government reversed the ban through Ministerial Order #042/2019, replacing the prohibition with a *standards* framework permitting the practices the ban had prohibited.

The post-2019 operational record is documented through CBC News investigative reporting and through Inclusion Alberta's continuing Freedom of Information advocacy. As of April 2024, Alberta operated **263 seclusion rooms** across the K-12 system, with EPSB accounting for 167 of those rooms (63 percent of the provincial total despite enrolling 14 percent of K-12 students). As of 2024-25, Alberta operated **116 seclusion rooms across 11 of 59 public and Catholic divisions, with students confined more than 7,000 times during the prior school year**. The St. Albert School Division — the school division within which the campaign producing this blueprint operates — was among the divisions confirmed as continuing to operate seclusion rooms in 2024-25.

The EPSB has, since 2024, advanced a stated phase-out of seclusion-room infrastructure, reducing the number of operational rooms from 167 to 105 between 2024 and May 2025 and decommissioning 62 rooms over that period. Between September 2024 and April 2025, EPSB recorded **445 non-self-selected seclusion-room uses** — an average of approximately 56 instances of locked involuntary confinement per month within a single Alberta school division. The phase-out trajectory is in the right direction. The phase-out has not eliminated the practice. The continued operational use of involuntary confinement, against students who are disproportionately autistic and developmentally disabled, is one operational harm within the broader engineered system.

The seclusion-room expansion's relationship to the funding shortfall and the segregated-classroom expansion is direct. Seclusion rooms are concentrated in the specialized programming streams (the interactions programs) and in the dedicated facilities for students with severe complexity. Students placed in segregated settings are at disproportionate risk of involuntary confinement within those settings. The segregation and the seclusion compound. The system that produces the segregation through the funding shortfall and the segregated-classroom expansion also produces the conditions in which involuntary confinement is operationally normalized within the segregated environments.

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The Saskatchewan Parallel

The engineered repudiation pattern Section 1.3a documents is not unique to Alberta. The Government of Saskatchewan has, in 2025-2026, advanced an analogous policy direction through its **Specialized Support Classroom Pilot Project**. National disability-rights organization Inclusion Canada published a press release in November 2025 documenting the organization's position that the Saskatchewan project is *a euphemism for segregation*. The Saskatchewan pilot project's substantive content — the placement of students with disabilities in specialized classrooms separated from their non-disabled peers, framed as targeted support but operating as structural separation — matches the substantive content of the Alberta segregated-classroom expansion documented above.

The Saskatchewan parallel is significant for two reasons relevant to Section 1.3a's prosecutorial framing.

First, the parallel establishes that the Alberta engineered repudiation is not an isolated provincial-government anomaly. It is part of a broader pattern in which centre-right Canadian provincial governments are advancing structural shifts away from inclusive education and toward expanded segregated programming. The pattern is being challenged by the disability community in both provinces through documented advocacy, but the structural shifts are continuing.

Second, the parallel is significant in light of the Saskatchewan comparator analysis Part Two Section 2.6 documented. Saskatchewan enacted comprehensive accessibility legislation in 2023 under a Saskatchewan Party government — the political party most ideologically and structurally similar to Alberta's United Conservative Party — and the legislation includes statutory consideration of the UN CRPD in standards development. The fact that Saskatchewan has comprehensive accessibility legislation and is *still* advancing a segregated-classroom pilot project that Inclusion Canada characterizes as segregation establishes that comprehensive accessibility legislation is necessary but not sufficient to prevent structural shifts away from inclusive education. Alberta, which lacks comprehensive accessibility legislation, is advancing the same structural shift without the legislative-architecture safeguards that Saskatchewan at least has on the books even where they are being insufficiently applied.

The Saskatchewan parallel reinforces the case for the comprehensive Alberta accessibility legislation Part Three of this blueprint will propose. The legislation must include education as a stand-alone accessibility area, must operationalize the Article 24 inclusive-education obligation in the substantive provisions, must prohibit the segregation-permissive policy frameworks the engineered system is advancing, and must require the close consultation with persons with disabilities that Article 4(3) of the Convention requires and that the Alberta policy-development structures are currently bypassing.

What Section 1.3a Establishes

Alberta's policy posture toward children with disabilities in 2026 is an engineered three-part repudiation of inclusion as a guiding principle. The structural floor is the funding shortfall: Alberta has spent the least per student of any Canadian province for four consecutive years, the gap is widening at approximately 3 percent per year, and the cumulative inflation-adjusted decrease over the past decade is 17.5 percent —

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

the steepest of any Canadian province. The operational consequence is that the educational-assistant capacity required to deliver inclusive education is not present in Alberta classrooms at the scale required, with hundreds of EA positions cut through the Jordan's Principle eligibility collapse and with announced provincial staffing commitments not materializing on the operational timelines required.

The structural absorption mechanism is the segregated-classroom expansion. EPSB's 75-percent-segregated-stream new-class allocation over the past six years, the planned Autism Centre of Excellence, the Calgary Catholic St. Anthony school and its planned second sister facility, and the broader provincial replacement of the 2003 *Standards for Special Education* are documented operational evidence that the system is responding to the inclusion-impossibility-by-design of the funding shortfall by absorbing displaced students into segregated settings rather than by funding inclusion adequately. The Aiden O'Halloran lifecycle case documented in the CBC News reporting establishes the operational reality of the absorption: a Grade 6 student achieving 80 percent on math tests with targeted support became a Grade 7 student whose academic goal was reduced to *counting to 50* and who was *kept away* from his non-disabled peers underneath the library window of his classroom.

The political-cover mechanism is the Premier's *earn inclusion / lose inclusion* rhetoric. The April 17, 2026 statement and the prior December 2025 documentation establish the conditional-inclusion position as a sustained policy posture. The substantive shift between the 2022 candidate-Smith position (inclusion as staffing matter) and the 2026 Premier-Smith position (inclusion as contingent on children's behaviour) is documented in the public record. The shift relocates responsibility for the segregation from the system to the child. The 2022 candidate analysis — that adequate educational-assistant staffing is the precondition for inclusion — remains the substantively correct analysis. The 2026 Premier rhetoric is the political cover for the system's continuing failure to deliver the staffing.

The 45 years of research evidence the engineered system is operating against, documented across the Hehir 2016 review of 280 studies, the Krämer 2021 meta-analysis covering approximately four million students, multiple longitudinal studies, and the consistent peer-reviewed academic literature, establishes that inclusive education produces superior academic and social outcomes for students with disabilities and produces neutral-or-positive outcomes for students without disabilities. The structural direction Alberta is moving in is opposite to the direction the research evidence supports.

The consultation gap through which the engineered system is being designed and implemented — the Class Size and Complexity Cabinet Committee and the Aggression and Complexity in Schools Action Team operating without disability-community representation — is the procedural complement to the substantive shift. The disability community is not at the table where the policy that affects them is being designed.

The seclusion-room expansion, with 7,000+ confinements during the most recent complete school year and continuing operation in 11 of 59 public and Catholic divisions plus the St. Albert division, is one operational harm within the engineered system rather than the central feature of it. The central feature is the segregation. The seclusion is the additional involuntary-confinement layer that operates within the segregated environments.

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The Saskatchewan parallel, with Inclusion Canada documenting the Saskatchewan Specialized Support Classroom Pilot Project as a *euphemism for segregation*, establishes that the Alberta engineered repudiation is part of a broader pattern challenging the disability community in both Western Canadian provinces simultaneously.

The lifecycle implications for Alberta children with disabilities are direct. The foundational years of educational development are spent in a system whose engineered structural design produces segregation by funding starvation, expands segregation through specialized programming and dedicated facilities, and provides political cover through conditional-inclusion rhetoric that relocates responsibility for the segregation from the system to the children. The cumulative effect on the children who are subject to the architecture is documented in the parental accounts, the Inclusion Alberta surveys, the CBC investigative coverage, and the academic and policy literature this section has cited. The lifecycle frame Section 1.4 will then carry into the transition-and-AISH-and-PDD architecture begins, structurally, in the K-12 system. The damage done in the K-12 system compounds across the lifecycle.

The international human rights implications of Alberta's engineered K-12 system, including the Article 24 (right to inclusive education) implications and the Article 4(3) (consultation obligation) implications of the documented record, are addressed in Part Two Section 2.7a. The two addenda together establish the most complete documented record of Alberta's specific position on inclusive education for children with disabilities and of the gap between that position and the international human rights framework Canada has bound itself to.

The relevant prosecutorial point for closing Section 1.3a is the same point Section 1.3 closed on: the architecture is the choice. The architecture's implications for children with disabilities are the operational consequences of the choice. The choice is, on the documented record, reversible. The blueprint Part Three develops will document what the alternative architecture should look like and how it should be sequenced into operation. Section 1.4 returns to the lifecycle frame at the transition point from K-12 into adulthood, the point at which the Alberta architecture transfers responsibility from the educational system to the AISH-and-PDD-and-FSCD-and-WCB architecture documented in the rest of Part One.